भारतीय गैर न्यायिक

एक सौ रुपये

Rs. 100

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ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

தமிழ்நாடு तमिलनाडु TAMILNADU

SRICITY PVT. LTD.

AT 926093

A. ROUFBASHA, B.A.,
STAMP VENDOR LIC No: 8/B3/97
NEW No: 17, OLD No: 9,
P.P.V. KOIL STREET, MYLAPORE,
CHENNAI-600 004. Ph: 24982427

INFRASTRUCTURE DEVELOPMENT AGREEMENT

THIS INFRASTRUCTURE DEVELOPMENT AGREEMENT (Agreement) is entered into on 14.07.2015

BETWEEN

Sri City (P) Limited, a company registered under the Companies Act, 1956 and having its registered office at 85, Kutchery Road, Mylapore, Chennai 600004, (having PAN AAJCS8887M and CIN U45201TN2005PTC057627), represented by its authorised signatory, Mr R Janardhana Reddy, son of late Mr N Ramanatha Reddy, aged about 63 years, (hereinafter referred to as "**the Developer**", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the one part)

AND

Nucleus Satellite Communications (Madras) Pvt. Ltd., a company registered under the Companies Act, 1956, having its registered office at PO 1505, Kumaran Nagar, Chemmencherry, Chennai 600 119, (having PAN AAACN9960D and CIN U74999TN1997PTC038400), represented herein by its Chief Executive Officer, Mr V Raman, (hereinafter referred to as "**the Allottee**", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the other part).

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

For SRICITY PRIVATE LIMITED

Authorised Signatory

WHEREAS:

a. The Developer owns lands in Satyavedu and Varadaiahpalem Mandals of Chittoor District, Andhra Pradesh, for the development of mixed (commercial, residential and recreational) and integrated industrial park consisting of Special Economic Zone (SEZ), Domestic Tariff Zone (DTZ), Free Trade Warehousing Zone (FTWZ) (collectively referred to as "Sri City") and has obtained requisite approvals for such development;

b. The Developer has granted and Allottee has taken on lease 8 acres of land in the DTZ as defined as per Schedule A of the lease deed ("Plot") in terms of the Lease Deed dated 13.07.2015 entered into between the Parties, which shall be co-existent and co-terminus and shall be conjointly read for all purposes, as integral part and parcel of this Agreement;

c. The Developer has also agreed and represented to develop Infrastructure Facilities/Services.

d. The Developer has also agreed to provide common amenities and facilities within the SEZ and the DTZ Area, such as open spaces, roads, landscape gardens etc. The Allottee will have the right to access and use the said common facilities and amenities subject to payment of the prescribed charges; and

e. The Allottee has agreed to avail the services and maintenance of common facilities and amenities to be provided by the Developer either by itself or through its associate companies, under a separate agreement.

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. The Developer shall construct the Infrastructure Facilities/Services in the common Area in the DTZ Area.

2. In consideration of allotment of Plot by the Developer by way of lease together with Infrastructural Facilities/Services herein below mentioned:

   i) The Allottee has paid to the Developer an Infrastructure Development Cost of Rs.4,96,00,000/- (Rupees four crores ninety six lakhs only), as per details below, towards construction & development of centralised and common infrastructure facility system consisting of infrastructure facilities, namely, black topped road, power, water, storm water drain and sewage networks (collectively and individually, as the case may be, "Infrastructure Facilities/Services") and provision of the said Infrastructure Facilities/Services along the designated routes within the right-of-way:

      a) 20% of the total Infrastructure Development Cost i.e., Rs.1,03,60,000/- (Rupees one crore three lakhs sixty thousand only) paid through transfer under reference UTR No.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

For SRICITY PRIVATE LIMITED

Authorised Signatory

IBKLR92015022800079481 on 28.02.2015 and UTR No. IBKLR92015032600054393 on 26.03.2015, the payment of which the Developer acknowledges and

b) 80% of the total Infrastructure Development Cost i.e., Rs.4,51,92,000/- (Rupees four crores fifty one lakhs ninety two thousand only) (subject to applicable service tax and TDS) paid vide demand draft bearing No. 007244 dated 11.7.2015 drawn on ICICI Bank _____, as of date of the execution of this Agreement.

ii) On and from the date of this Agreement, the Allottee shall pay all present or future taxes (by whatever name it may be called and identified). Service tax, if any applicable, will be borne by the Allottee.

iii) The Allottee shall be provided infrastructure for power up to 1,000 KVA and infrastructure for & supply of water up to 100 KL/Day and the provisions for the same will be made available along the designated routes within the right-of-way. Any additional requirement by the Allottee shall be made available by the Developer at such cost, expenses, deposits & charges to be paid by the Allottee towards provision, installation, connection & consumption respectively. The Allottee agrees that the increase in cost, payable to the Developer, shall be determined by the Developer based on the increase in infrastructure requested for. If, at any point of time, it is found that the Allottee's usage of any infrastructure is more than the quantum agreed herein, then the Developer has the right to restrict such usage to the agreed quantum unless the Allottee agrees to pay the additional charges demanded by the Developer.

3. In consideration of the Allottee effecting the payment as aforementioned, the Developer agreed to allot the Plot and executed the Lease Deed and further agrees to construct the following Infrastructure Facilities/Services within the timeline mentioned below:

Infrastructure to be made available along the designated routes within the right-of-way	**Timeline**
Road	Main approach road: ▪ Construction Road – within 30 days from the date of request of Allottee ▪ Permanent Road – within 60 days from the date of request of Allottee Driveway connectivity from road to Plot: ▪ Construction Driveway – within 30 days from the date of request of Allottee (on chargeable basis at actuals) ▪ Permanent Driveway – within 45 days from the date

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

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	of request of Allottee (on chargeable basis at actuals)
Power infrastructure (for supply through 33 KV line)	▪ Construction power – within 45 days from the date of submission of application by the Allottee to APSPDCL ▪ Permanent power – within 90 days from the date of submission of application by the Allottee to APSPDCL.
Water	▪ Construction water line – within 30 days from date of request of Allottee ▪ Permanent water line – within 30 days from date of request of Allottee
Sewage	▪ Within 30 days from date of request of Allottee

i) The Developer shall build and lay down roads within the right-of-way defined in the Development Plan and the Allottee will have road (18M ROW) access to at least one of its plot boundaries.

ii) The Developer shall develop, erect and construct water supply system, pipe lines, pumping stations as per the specification of their design consultants for supply of water as per the Allottee's agreed water requirement.

iii) Sewage will be collected and treated through sewage lines and sewage treatment plants.

iv) The Developer shall implement and construct rain water harvesting system and other related pipe lines, drains, pits for discharge in its land. Excess water will be discharged after rain water harvesting into storm water drains.

v) The Developer shall provide suitable facilities and provisions for effective garbage collection and disposal except for hazardous materials.

vi) The Developer shall construct sub-stations, electrical cable lying in its land, required by the Allottee but outside the Plot.

4. The Developer assures and confirms that the construction of the Infrastructure Facilities/Services shall be strictly in accordance with the approved plans and as per the sanctions and permissions obtained / to be obtained on behalf of the Developer and in compliance with all the rules and regulations that govern such construction in the DTZ.

5. The consideration mentioned above is for construction of the roads, water supply lines, drainage, sewerage, electricity lines, water treatment, garbage disposal, common area facilities and the Allottee shall be separately liable for all other levies, duties, charges, stamp duty, fees, property taxes and any other taxes and other outgoings imposed by the Central or State Government or any other statutory/local authority in respect of the Allottee's holdings. All infrastructure connection costs will be borne by Allottee. It is agreed that representatives of the

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

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Authorised Signatory

Allottee and the Developer shall coordinate with each other for connection of networks.

6. It is hereby agreed that the Developer shall be obligated to complete the infrastructural development. In the event of there being any justifiable and reasonable cause, specified below, appropriate extension can be made for the completion of such specified infrastructural development, provided, however that the Developer shall do its best efforts to complete such specified infrastructure development.

   i) Non-availability of steel, cement; other building materials or due to labour problems or reasons beyond control which could not be reasonably foreseen,

   ii) Lock out, fire, accident, explosion, riots, power shortage, power cut, road transporter's strike, go slow, bandhs, etc.

   iii) War, acts of the enemies of the states, act of terrorism, civil commotion, disturbance or act of State or act of God;

   iv) Any legislation, notice, order, notification, rules, regulations or bye laws or orders of Court, Government and/or other local or public body or authority or competent authority and/or any other cause beyond the control of the Developer.

   v) Any delay in issuing any permission, sanction, approval, etc. and/or any extension(s) thereof by the concerned authority or authorities despite diligent efforts by the Developer.

7. The Developer shall have the right to make necessary changes and alterations in the infrastructure plan, as may be required under the circumstances, however without causing any disturbances to the infrastructure created herein.

8. The Developer shall make necessary arrangements to obtain electricity, water supply and drainage connections in respect of the Plot. In the event of any delay in obtaining such connections due to circumstances, which are beyond the control of the Developer, the time stipulated under this Agreement would be suitably extended.

9. The Allottee will always abide by all the rules and regulations which may be framed from time to time by the Developer for the maintenance and upkeep of the infrastructure. The Allottee will provide facility for checking sewage discharged after effluent treatment to ensure that sewage being discharged does not have any harmful materials and conforms to Pollution Control Board norms. In case of failure to do so, the Developer will not allow discharge of sewage into Sri City system.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

For SRICITY PRIVATE LIMITED

Authorised Signatory

10. This Agreement is irrevocable by any of the parties. No amendment of this Agreement shall be effective unless made in writing and signed by or on behalf of each of the Parties.

11. In the event of any disputes or differences between the parties arising out of or in connection with this Agreement, the parties hereto shall use their best efforts to resolve such disputes or differences amicably by mutual negotiations. All disputes arising in connection with this Agreement that have not been amicably settled, within 30 days of occurrence thereof or as may be mutually agreed, shall be referred to arbitration. Each of the parties is entitled to appoint one Arbitrator and the presiding Arbitrator shall be appointed by the two Arbitrators. The Arbitration shall be as per the provisions of the Arbitration and Conciliation Act, 1996 (with such statutory amendment / modification thereof). The Arbitration shall be conducted in the English language and the seat of such Arbitration shall be in Chennai, India. The costs shall be as determined by the Arbitrators.

12. This Agreement shall be governed in accordance with laws of India. Subject to the above arbitration provision, the Courts situated at Chennai and their appeal Courts shall have the competent jurisdiction in respect of matters arising under Agreement.

IN WITNESS WHEREOF the Parties have entered into this Infrastructure Development Agreement in duplicate on the day, month and year first above mentioned:

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

Authorised Signatory
V Raman
Chief Executive Officer

For Sri City (P) Ltd.,

For SRICITY PRIVATE LIMITED

Authorised Signatory

Authorised Signatory
R Janardhana Reddy

WITNESSES:

1. Signature, Name & Address

K. Balaji
S/o K. Sudhakar
Gayathri Nagar
Katagollu road
Srikalahasti

2. Signature, Name & Address

NAVNEET RAMAN
P1, 4th FLOOR, WHITE HOUSE, NEW NO 48,
GANDHI NAGAR, ADYAR, CHENNAI 20